2.2 The Big Question: How to Divide Power

Imagine listening in on the debates at the Constitutional Convention. Delegates from more populous states want more representatives than smaller states. Other delegates want the same number of representatives for all states. How do they resolve this issue? They compromise.

MAIN IDEA Delegates at the Constitutional Convention decided how to divide power in the government and how to elect the president.

THE GREAT COMPROMISE

As you have read, the Constitutional Convention embraced the idea that the federal government should rely on three branches of government based on the principles of **separation of powers** and **checks and balances**. Each branch would have unique powers. None would have more power than any other, and each branch would be a check on the other two. The **legislative branch** would create and pass legislation, or make laws. The **executive branch** would lead the nation and enforce laws, and the **judicial branch** would interpret laws.

Most delegates agreed on a judicial branch headed by a **Supreme Court** and that one leader, a president, should head the executive branch. But they could not agree on how the legislative branch should work. Delegates Edmund Randolph and William Paterson proposed two different plans, the **Virginia Plan** and the **New Jersey Plan**, shown at right. Smaller states, such as Delaware, Maryland, and New Jersey, were uncomfortable with the Virginia Plan. Larger states didn't like the New Jersey Plan. Delegates voted for the Virginia Plan as the draft framework for the Constitution, but many remained dissatisfied.

Roger Sherman of Connecticut combined the best ideas from both plans to craft the **Great Compromise**. He proposed a legislative branch with two houses. Delegates voted in favor of Sherman's plan and established the legislative branch that exists today.

PRESIDENTIAL ELECTIONS

The delegates agreed on the executive role of the president of the United States, but not on how to select this leader. Some argued for a direct election—the candidate with the majority of votes would win. Others wanted Congress or the state legislatures to choose, fearing that the people might elect someone unqualified for the job.

The Convention delegates landed on another compromise: the **electoral college**. States would be granted a specific number of electors equal to their numbers of senators and representatives in Congress. States would then choose their electors, who would cast their votes for president based on their voters' preferences. Though voting rights would eventually expand over time, after the Revolution, voting was limited to white males.

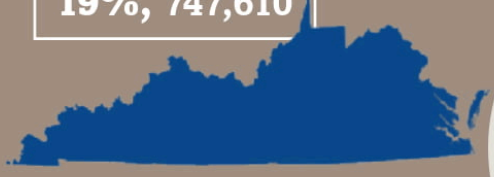
HISTORICAL THINKING

1. **READING CHECK** What compromises did the Convention delegates reach when planning for the legislative and executive branches?
2. **DETERMINE CHRONOLOGY** What two proposals preceded the Great Compromise?
3. **FORM AND SUPPORT OPINIONS** Of the Virginia Plan and the New Jersey Plan, which do you think best reflected the spirit of the new nation? Support your opinion with evidence from the text.

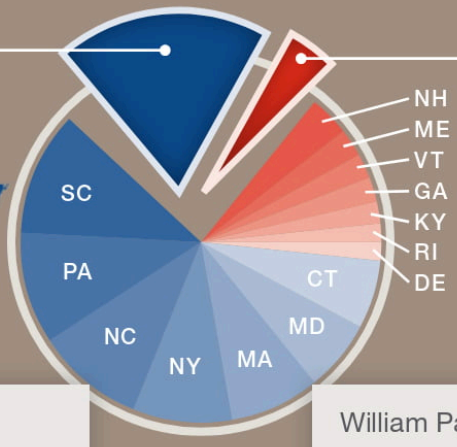
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TOTAL POPULATION OF THE UNITED STATES, 1790: **3,929,214**

Population of Virginia
19%, 747,610



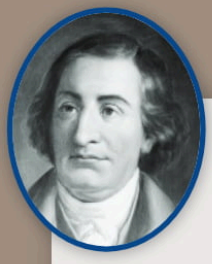
= one representative from Virginia



Population of New Jersey
4.7%, 184,139



= one representative from New Jersey



Edmund Randolph's
Virginia Plan

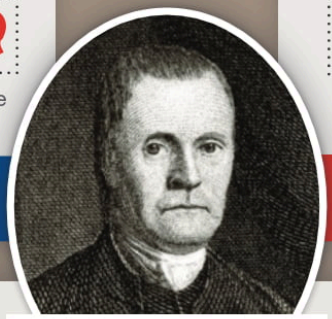
TWO HOUSES

UPPER HOUSE 

LOWER HOUSE 

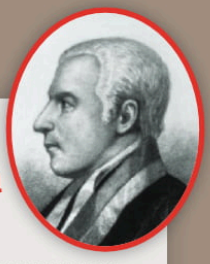
The number of representatives from each state is **proportionate to the state's population.**

This plan made delegates from small states nervous.



ROGER SHERMAN'S

Great Compromise



William Paterson's
New Jersey Plan

ONE HOUSE



Each state has an equal number of representatives, **regardless of population.**

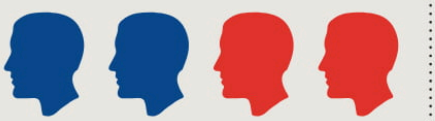
Delegates from larger states didn't like this plan.

HOUSE OF REPRESENTATIVES



The number of representatives from each state is **proportionate to the state's population.**

SENATE



Each state has an equal number of representatives, **regardless of population.**

Source: United States Census Bureau

Separation of Powers

THREE BRANCHES OF GOVERNMENT

LEGISLATIVE BRANCH
MAKES LAWS

EXECUTIVE BRANCH
ENFORCES LAWS

JUDICIAL BRANCH
INTERPRETS LAWS

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